

2. **Special trusts not within the Act.**—*Special* trusts are not within the purview of the Act of Henry the Eighth (*a*); and therefore, if any agency be imposed on the trustee, as by a limitation to A. and his heirs, upon trust to *pay* the rents (*b*), or to *convey* the estate (*c*), or if any control is to be exercised, or duty is to be performed, as in the case of a trust to *apply* the rents to a person's *maintenance* (*d*), or in making *repairs* (*e*), or to *preserve contingent remainders* (*f*), and *a fortiori* if to *raise a sum of money* (*g*), or to *dispose of by sale* (*h*), in all these cases as the trust is of a special character, the operation of the statute of uses is effectually excluded. So if an estate be *devised* to trustees upon trust for a feme covert for her *sole and separate* use, and her *receipts alone to be discharges* (*i*). But if an estate be released by *deed* to A. and his heirs "upon trust," after the marriage of the relessor "for her and her assigns for life, for her *own sole and separate use*," but no *active* duty in respect of the separate use is expressed to be reposed in the trustee personally, a common law court has rejected the sole and separate use as an estate known only in equity, and held the legal estate for life to be executed in the *feme* (*j*).

3. **Trust to "permit and suffer A. to receive," &c. executed by the Act.**—And if the trust be simply to "*permit and suffer*

(*a*) See Introduction; and see *Wright v. Pearson*, 1 Eden, 125; *Mott v. Buxton*, 7 Ves. 201.

(*b*) *Robinson v. Grey*, 9 East, 1; *Symson v. Turner*, 1 Eq. Ca. Ab. 383, note, 3d resolution; *Garth v. Baldwin*, 2 Ves. 646; *Chapman v. Blissett*, Cas. t. Talbot, 145; *Barker v. Greenwood*, 4 M. & W. 429; *Anthony v. Rees*, 2 Cr. & Jer. 75; *White v. Barker*, 1 Bing. N. C. 573; *Sherwin v. Kenny*, 16 Ir. Ch. Rep. 138; and see *Doe v. Homfray*, 6 Ad. & Ell. 206; *Kenrick v. Lord Beauchlerk*, 3 Bos. & Pul. 178; *Nevil v. Saunders*, 1 Vern. 415; *Jones v. Lord Say & Sele*, 1 Eq. Ca. Ab. 383.

(*c*) *Garth v. Baldwin*, 2 Ves. 646; *Doe v. Field*, 2 B. & Ad. 504; *Doe v. Edlin*, 4 Ad. & Ell. 582; *Doe v. Scott*, 4 Bing. 505.

(*d*) *Sylvester v. Wilson*, 2 T. R. 444; *Doe v. Edlin*, 4 Ad. & Ell. 582.

(*e*) *Shapland v. Smith*, 1 B. C. C. 75.

(*f*) *Bisco v. Perkins*, 1 V. & B. 485; and see *Barker v. Greenwood*, 4 M. & W. 431.

(*g*) *Wright v. Pearson*, 1 Eden, 119; *Stanley v. Lennard*, 1 Eden, 87.

(*h*) *Bagshaw v. Spencer*, 1 Ves. 142.

(*i*) *Harton v. Harton*, 7 T. R. 652; and see *Hawkins v. Luscombe*, 2 Sw. 391; *Nevil v. Saunders*, 1 Vern. 415; *Jones v. Lord Say & Sele*, 1 Eq. Ca. Ab. 383; *Doe v. Claridge*, 6 C. B. 641; *Williams v. Waters*, 14 M. & W. 172.

(*j*) *Williams v. Waters*, 14 M. & W. 166. See *Nash v. Allen*, 1 H. & C. 167; and see *post*, p. 213.